



Bill Number: S.B. 1489

Shope Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement that a paid circulator verbally disclose their name upon approaching a potential petition signer.
2. Removes the requirement that a paid circulator's badge identify the circulator's first name and last initial.

SHOPE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1489
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 19-102, Arizona Revised Statutes, is amended to
3 read:

4 19-102. Initiative petition; circulators

5 A. The form of petition for a law or amendment to the constitution
6 of this state or county legislative measure, or city or town ordinance, or
7 amendment to a city or town charter proposed by the initiative to be
8 submitted directly to the electors, shall be substantially in the form
9 prescribed in section 19-101, except that the title and body of such
10 petition shall read:

11 Initiative description

12 (Insert a description of not more than two hundred words
13 of the principal provisions of the proposed measure or
14 constitutional amendment.)

15 Notice: This is only a description of the proposed measure (or
16 constitutional amendment) prepared by the sponsor of the measure. It may
17 not include every provision contained in the measure. Before signing,
18 make sure the title and text of the measure are attached. You have the
19 right to read or examine the title and text before signing.

20 Initiative Measure to be Submitted Directly to Electors

21 We, the undersigned, citizens and qualified electors of
22 the state of Arizona, respectfully demand that the following
23 proposed law (or amendment to the constitution, or other
24 initiative measure), shall be submitted to the qualified
25 electors of the state of Arizona (county, city or town of
26 _____) for their approval or rejection at the next
27 regular general election (or county, city or town election)
28 and each for himself says: (terminate form same as a
29 referendum petition.)

1 B. Each petition sheet shall have printed on the top of each sheet
2 the following:

3 ~~It is unlawful to sign this petition before it has a~~
4 serial number.

5 C. Each petition sheet shall have printed in capital letters in not
6 less than twelve point bold-faced type in the upper right-hand corner of
7 the face of the petition sheet and below the statement prescribed in
8 subsection B of this section the following:

9 ~~_____ paid circulator_____ volunteer_____.~~

10 D. A circulator of an initiative petition shall state whether the
11 circulator is a paid circulator or volunteer by checking the appropriate
12 line on the petition form before circulating the petition for signatures.
13 ON APPROACHING A POTENTIAL PETITION SIGNER, A PAID CIRCULATOR SHALL
14 VERBALLY DISCLOSE ~~[THE CIRCULATOR'S FIRST NAME,]~~ THE STATE IN WHICH THE
15 CIRCULATOR LEGALLY RESIDES AND THAT THE CIRCULATOR IS A PAID CIRCULATOR.
16 A PAID CIRCULATOR ALSO SHALL WEAR A BADGE THAT IS CLEARLY VISIBLE, THAT
17 STATES THAT THE CIRCULATOR IS A PAID CIRCULATOR AND THAT BEARS ~~[THE~~
18 ~~CIRCULATOR'S FIRST NAME AND LAST INITIAL AND]~~ THE STATE IN WHICH THE
19 CIRCULATOR LEGALLY RESIDES.

20 E. Signatures obtained on initiative petitions in violation of
21 subsection D of this section are void and shall not be counted in
22 determining the legal sufficiency of the petition. The presence of
23 signatures that are invalidated under this subsection on a petition does
24 not invalidate other signatures on the petition that were obtained as
25 prescribed by this section.

26 Sec. 2. Section 19-102.01, Arizona Revised Statutes, is amended to
27 read:

28 19-102.01. Initiative petitions; standard of review

29 A. Constitutional and statutory requirements for ~~statewide~~
30 initiative measures must be strictly construed and persons using the
31 initiative process must strictly comply with those constitutional and
32 statutory requirements.

33 B. The secretary of state shall make available a sample initiative
34 petition that strictly complies with the requirements of section 19-121.
35 Any committee that uses the sample initiative petition provided by the
36 secretary of state shall be presumed to have strictly complied with the
37 requirements of section 19-121.

38 Sec. 3. Section 19-118, Arizona Revised Statutes, is amended to
39 read:

40 19-118. Registered circulators; requirements; violation;
41 classification; definition

42 A. For ~~statewide~~ initiative and referendum measures ~~only~~, INCLUDING
43 MEASURES GOVERNED BY SECTIONS 19-141, 19-142 AND 19-143, all circulators
44 who are not residents of this state and all paid circulators must register
45 as circulators with the secretary of state before circulating petitions
46 pursuant to this title. The committee that is circulating the petition
47 shall collect and submit the completed registration applications to the

1 secretary of state. The secretary of state shall establish in the
2 instructions and procedures manual issued pursuant to section 16-452 a
3 procedure for registering circulators, including circulator registration
4 applications, and shall publish on a website maintained by the secretary
5 of state all information regarding circulators that is required pursuant
6 to this section. The secretary of state ~~OR OTHER FILING OFFICER, AS~~
7 ~~APPLICABLE~~, shall disqualify all signatures collected by a circulator who
8 fails to register pursuant to this subsection as provided for in section
9 19-121.01, subsection A.

10 B. The circulator registration application required by subsection A
11 of this section shall require the following:

12 1. The circulator's full name, residence address, telephone number
13 and email address.

14 2. The initiative or referendum petition on which the circulator
15 will gather signatures.

16 3. A statement that the circulator consents to the jurisdiction of
17 the courts of this state in resolving any disputes concerning the
18 circulation of petitions by that circulator.

19 4. The address of the committee in this state for which the
20 circulator is gathering signatures and at which the circulator will accept
21 service of process related to disputes concerning circulation of that
22 circulator's petitions. Service of process is effected under this section
23 by delivering a copy of the subpoena to that person individually, by
24 leaving a copy of the subpoena with a person of suitable age or by mailing
25 a copy of the subpoena to the committee by certified mail to the address
26 provided.

27 5. An affidavit from the registered circulator that is signed by
28 the circulator before a notary public and that includes the following
29 declaration:

30 I, _____ (print name) _____, under penalty of a class 1
31 misdemeanor, acknowledge that I am eligible to register as a
32 circulator in the state of Arizona, that all of the
33 information provided is correct to the best of my knowledge
34 and that I have read and understand Arizona election laws
35 applicable to the collection of signatures for ~~a statewide~~ AN
36 initiative or referendum.

37 C. Within five business days after submission and review of a
38 complete and correct circulator registration application that complies
39 with this section, the secretary of state shall register and assign a
40 circulator registration number to the circulator.

41 D. A person may not register as a circulator pursuant to this
42 section if the person:

43 1. Has had a civil or criminal penalty imposed for a violation of
44 title 16 or this title within the immediately preceding five years.

45 2. Has been convicted of treason or a felony and has not been
46 restored to civil rights as described in section 16-101, subsection A,
47 paragraph 5.

1 3. Has been convicted of any criminal offense involving fraud,
2 forgery or identity theft.

3 E. If a registered circulator is properly served with a subpoena to
4 provide evidence in an action regarding circulation of petitions and fails
5 to appear or produce documents as provided for in the subpoena, all
6 signatures collected by that circulator are deemed invalid. The party
7 serving the subpoena may request an order from the court directing the
8 secretary of state to remove any signatures collected by the circulator as
9 provided for in section 19-121.01, subsection A.

10 F. Any person may challenge the lawful registration of circulators
11 in the superior court of the county in which the circulator is registered.
12 A challenge may not be commenced more than ten business days after the
13 date that the secretary of state's office has received, processed and made
14 available all final petition sheets individually numbered. The person
15 challenging signatures may amend that complaint after the secretary of
16 state has removed signatures and signature sheets as prescribed in section
17 19-121.01. An action pursuant to this section shall be advanced on the
18 calendar and decided by the court as soon as possible. Either party may
19 appeal to the supreme court within five calendar days after entry of
20 judgment. The prevailing party in an action to challenge the registration
21 of a circulator under this section is entitled to reasonable attorney
22 fees.

23 G. The removal or disqualification of any one or more circulators
24 does not invalidate the random sample of signatures made pursuant to
25 section 19-121.01, and the secretary of state shall not be required to
26 conduct any additional random sampling of signatures.

27 H. A person who knowingly omits or misrepresents information or
28 provides false information on a circulator registration application or who
29 registers in violation of this section is guilty of a class 1 misdemeanor.

30 I. For the purposes of this title, "paid circulator":

31 1. Means a natural person who receives monetary or other
32 compensation for obtaining signatures on ~~a statewide~~ AN initiative or
33 referendum petition or for circulating ~~statewide~~ initiative or referendum
34 petitions for signatures.

35 2. Does not include a paid employee of any political committee
36 organized pursuant to title 16, chapter 6, unless that employee has or
37 will obtain two hundred or more signatures on an initiative, referendum or
38 recall petition in an election cycle.

39 Sec. 4. Section 19-118.01, Arizona Revised Statutes, is amended to
40 read:

41 19-118.01. Signature collection; prohibited payments;
42 violation; classification

43 A. A person shall not pay or receive money or any other thing of
44 value based on the number of signatures collected on ~~a statewide~~ AN
45 initiative or referendum petition. Signatures that are obtained by a paid
46 circulator who violates this section are void and shall not be counted in
47 determining the legal sufficiency of the petition.

1 B. A violation of this section is a class 1 misdemeanor.

2 Sec. 5. Section 19-141, Arizona Revised Statutes, is amended to
3 read:

4 19-141. Initiative and referendum in counties, cities and
5 towns

6 A. This chapter applies to the legislation of cities, towns and
7 counties, except as specifically provided to the contrary in this article.
8 The duties required of the secretary of state as to state legislation
9 shall be performed in connection with such legislation by the city or town
10 clerk, county officer in charge of elections or person performing the
11 duties ~~as such~~ OF THAT OFFICE. The duties required of the governor shall
12 be performed by the mayor or the chairman of the board of supervisors, the
13 duties required of the attorney general shall be performed by the city,
14 town or county attorney, and the printing and binding of measures and
15 arguments shall be paid for by the city, town or county in like manner as
16 payment is provided for by the state with respect to state legislation.
17 The provisions of section 19-124 with respect to the legislative council
18 analysis do not apply in connection with initiatives and referenda in
19 cities, towns and counties. The printing shall be done in the same manner
20 as other municipal or county printing is done.

21 B. Distribution of pamphlets shall be made to every household
22 containing a registered voter in the city, town or county by the city or
23 town clerk or by the county officer in charge of elections by mail before
24 the earliest date for receipt by registered voters of any requested early
25 ballot for the election at which the measures are to be voted on. If the
26 pamphlet is not mailed before the earliest date for receipt of a requested
27 early ballot, the officer in charge of elections shall provide a notice
28 with the early ballots stating when the pamphlets will be mailed and where
29 and when the pamphlets may be accessed or viewed. Any contract for
30 pamphlet publication or mailing, or both, shall provide for the contractor
31 to pay a penalty for each day of mailing that occurs on or after the
32 earliest date for receipt of requested early ballots. The penalty shall
33 be ~~one-cent~~ \$.01 for each household with a registered voter for each day
34 of late mailing, and the monies shall be paid to the office of the officer
35 in charge of elections. Pamphlets shall not be mailed or carried less
36 than ten days before the election at which the measures are to be voted
37 ~~upon~~ ON.

38 C. Arguments supporting or opposing municipal or county initiative
39 and referendum measures shall be filed with the city or town clerk or the
40 county officer in charge of elections not less than ninety days before the
41 election at which they are to be voted ~~upon~~ ON.

42 D. The procedure with respect to municipal and county legislation
43 shall be as nearly as practicable the same as the procedure relating to
44 initiative and referendum provided for the state at large, except the
45 procedure for verifying signatures on initiative or referendum petitions
46 may be established by a city or town by charter or ordinance. ANY
47 MUNICIPAL OR COUNTY INITIATIVE OR REFERENDUM MEASURE THAT PROPOSES A

1 MANDATORY EXPENDITURE, ESTABLISHES A FUND FOR ANY SPECIFIC PURPOSE OR
2 ALLOCATES FUNDING FOR ANY SPECIFIC PURPOSE MUST PROVIDE A DISCLOSURE OF
3 THE EXPENDITURE, FUND OR ALLOCATION AND THE SOURCE OF INCREASED REVENUES
4 SUFFICIENT TO COVER THE ENTIRE IMMEDIATE AND FUTURE COSTS OF THE PROPOSAL.
5 THIS DISCLOSURE SHALL BE PROVIDED IN THE INITIATIVE OR REFERENDUM
6 DESCRIPTION PRESCRIBED BY SECTION 19-101 OR 19-102.

7 E. References in this section to duties to be performed by city or
8 town officers apply only with respect to municipal legislation, and
9 references to duties to be performed by county officers apply only with
10 respect to county legislation.

11 F. The duties required of the county recorder with respect to state
12 legislation shall also be performed by the county recorder with respect to
13 municipal or county legislation.

14 Enroll and engross to conform

15 Amend title to conform

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